SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Criminal Appeal No. 416 of 2018

CNR: SCIN010004162018

Date: 20 March, 2018

Citation: (2018) 6 SCC 454

CORAM: Hon'ble A.K. Goel & U.U. Lalit, JJ.

Petitioner: Dr. Subhash Kashinath Mahajan

- VERSUS -

Respondent: State of Maharashtra & Another

DOMAIN: CRIMINAL LAW & ATROCITIES PREVENTION **STATUS: Overruled by Supreme Court (Union of India v. State of Maharashtra)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Directions mandating preliminary inquiry and prior permission before arrest under the SC/ST Act placed an impermissible judicial clog on the statute. [OVERRULED by 3-Judge Bench in Union of India v. State of Maharashtra (2020)].

STATUTES APPLIED: Section 18 SC/ST Act, Section 438 CrPC, Article 21

DISPOSITION: GUIDELINES IMPOSING PRIOR PERMISSION BARRED (OVERRULED IN 2020)

EXECUTIVE RATIO SUMMARY:

Division bench introduced requirements of preliminary inquiry and senior police permission before arrest under SC/ST Act. Overruled by 3-Judge Bench in Union of India v. State of Maharashtra (2020) and nullified by Parliament's 2018 Amendment inserting Section 18A.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

SECURE RECORD ID: 33333333-0013-4000-8000-000000000013 | CANONICAL: SC_2018_Crl_App_No_416_of_2018_33330013.pdf

TAMPER-PROOF RECORD AUTHENTICATED VIA MERKLE AUDIT CHAIN